

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST; A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 27, 2023. The complaint is directed against ADOSO GESTIÓN, S.L. with NIF B50638162 (hereinafter ADOSO). The reasons on which the complaint is based are as follows:

In the received document, the following is reported:

The complainant states that they received a communication via email, dated June 28, 2022, sent from the address ***EMAIL.1 (which is owned by ADOSO GESTION S.L.) with the title "Audit Report and Accounts 2021."

This email was sent to all members of the Cooperative without using the Bcc (blind carbon copy) function, making the email addresses of the other members visible to all recipients, along with their names and surnames.

The complainant considers that their email address is personal data and that the disclosure by ADOSO of this data to the other members of the cooperative violates the GDPR, therefore requesting the initiation of a sanctioning procedure against ADOSO, once the appropriate verifications have been carried out.

Along with the notification, a copy of the email communication described in the previous paragraph is attached.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to ADOSO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on September 5, 2023, as evidenced by the acknowledgment of receipt in the file.

On September 13, 2023, a response letter from ADOSO was received by this Agency, in which they explain that they have contracted the comprehensive management of the cooperative, among which tasks include the convening of General Assemblies; they use an open email with the email addresses of all members as part of their transparency policy, so that members can exercise their social rights independently of the Board of Directors and the managing company.

They express their incomprehension regarding the current claims, as the complainant had repeatedly requested access to the register of members of the Cooperative and to obtain a copy of it; ADOSO provides a copy of the complainant's access request dated March 15, 2023, as well as ADOSO's response, facilitating access to the requested information, in accordance with the request and current legislation.

ADOSO considers that by sending emails with visible copies to all members, they comply with the complainant's annual access request to know the identity of the other members, in accordance with current legislation.

ADOSO provides the following documentation:

1. Management contract for the cooperative dated January 2, 2019, between ADOSO and the Cooperative ***COOPERATIVA.1 (hereinafter the COOPERATIVE),
 2. Copy of the request dated March 15, 2023, in which the complainant requests ADOSO access to the register of members of the Cooperative and to obtain a copy of it.
- The complainant based their request to ADOSO on the right of the members to convene an Extraordinary Assembly, as provided in Article 18.2 of the Cooperative's Bylaws, when requested by 20% of the members, given that exercising this right requires knowing the identity of the members and their postal address.
 - Furthermore, they also based their request on Article 21 "e)" of Legislative Decree 2/2014, of August 29, of the Government of Aragon, which approves the consolidated text of the Law on Cooperatives of

Aragon, according to which "Every member has free access to the books of the register of members of the cooperative."

- The complainant then argued that limitations on the exercise of the right to access the register of members are classified as a serious offense as provided in Article 94 "i)" of Legislative Decree 2/2014 of the Government of Aragon, namely, "The generalized transgression of the rights of the members."
- The complainant also included the response from the AEPD to their request for information regarding the case in question; the information from the AEPD is advisory in nature but not binding:

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I.

That the right of the partners to obtain the requested information could have its legal basis in Article 6.1 of the (GDPR), subsection b) "because it is provided for in the Statutes" or in subsection c) "derived from the fulfillment of a legal obligation."

II.

The right to access information would be grounded in the rights recognized by Law 27/1999, of July 16, on Cooperatives to the associates, as well as by the content of the cooperative's own statutes.

III.

They must take into account the principles relating to the processing of data in Article 5 of the GDPR, in the sense that the personal data to which the partners have accessed will be strictly necessary for the fulfillment of a lawful purpose and may not be used for other purposes than that for which they were communicated.

THIRD: On September 27, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claiming party was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The email addresses, as well as the names and surnames of the partners of the cooperative, are personal data, in accordance with the definition in subsection 1 of Article 4 of the GDPR:

"For the purposes of this Regulation, the following shall be understood as:

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1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); (...)"

In accordance with Article 6.1 of the GDPR regarding the lawfulness of processing:

"1. Processing shall be lawful only if at least one of the following applies:

(...)

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;"
Legislative Decree 2/2014, of August 29, of the Government of Aragon regulates cooperatives within its territory:

"Article 1. Object and scope of application.

This law aims to regulate and promote cooperatives that are established and develop their activities within the Aragonese territory, without prejudice to the fact that, to complete and improve their purposes, they may carry out instrumental activities and have relationships with third parties outside Aragon."

Article 21 regulates the Right to Information, in its subsection e) as follows:

"The social statutes shall regulate the right of information of the partners, both individually and collectively, subject to the following rules:

(...)

e) Every partner has free access to the cooperative's register of partners, as well as to the minutes book of the general assembly, and, if requested, the board of directors must provide a certified copy of the agreements adopted in the general assemblies. (...)"

III

Possible Breach of Obligation

Article 5.1.f) GDPR

The principle of confidentiality in data processing is included in Article 5.1.f) of the GDPR:

1. Personal data shall be:

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f) treaties in such a way as to ensure adequate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ("integrity and confidentiality").

According to the management contract provided by the Cooperative, ADOSO has been responsible for data processing since 02/01/2019. In accordance with the First Stipulation, section b), ADOSO has been assigned the following function:

(...)

b) Development of an accurate information system that keeps the Cooperative and the other parties involved informed.

(...)

Article 21 of Legislative Decree 2/2014, of the Government of Aragon, which regulates the right to information of cooperative members, states in section e) as follows:

"e) Every member has free access to the cooperative's member register books, (...)"

ADOSO, as the data controller, is obliged to provide free access to members to the information contained in the members' book, both in compliance with section b) of the First Stipulation of the aforementioned contract and with Article 21 of Legislative Decree 2/2014 of the Government of Aragon.

This data processing is legitimate according to Article 6 of the GDPR, sections b) and c):

"b) (...) 'necessary for the performance of a contract' (...)

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject" (...)

The members' book contains identifying and contact data of all members. The mutual knowledge of this information is compatible with the principles of personal data processing regulated in sections b) and c) of Article 5.1 of the GDPR:

1. Personal data shall be:

“b) collected for specified, explicit, and legitimate purposes, (...) (‘purpose limitation’);

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);

The identifying personal data of the members was also collected for the purpose of facilitating communication and mutual knowledge among the members of the Cooperative, thus facilitating the exercise of their social rights. The purpose of its use by the members is limited to matters related to the Cooperative.

Furthermore, in accordance with the ruling of the National Court of April 14, 2008, rec. 379/2006, “it is legitimate to provide members with information about the management of matters that are of common interest, as long as the dissemination of personal data does not exceed the limited scope of that relationship,” and there is no evidence in the examined case that personal data has been disseminated beyond the scope of the cooperative.

Therefore, ADOSO's sending of the email dated 28/06/2022 to inform the members about the Cooperative's accounts for 2021, without using the BCC function, is legitimate according to Article 21 of Legislative Decree 2/2014 of the Government of Aragon, because members have free access to the identifying data of other members, collected in the members' book; and ADOSO, as manager and data controller, also has the contractual obligation to provide this information to the members.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, exercising the investigative and corrective powers it holds.

For all the reasons stated above, and in light of the documentation provided in this file, ADOSO does not infringe the confidentiality principle of Article 5.1.f) of the GDPR by sending an email without using the BCC (blind carbon copy) function to communicate to the members of the Cooperative

***COOPERATIVA.1 the call for their upcoming General Assembly; in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to ADOSO GESTIÓN, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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